

**JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
SPRDL1-24-R-0101**

- 1. Contracting Agency:** Defense Logistics Agency - Land Warren (DLA-WRN).
- 2. Description of Action:** DLA-WRN proposes to award a new Firm-Fixed-Price contract to an offeror providing the product of Oshkosh Defense, LLC., Commercial and Government Entity (CAGE) 75Q65, or an offeror providing the product of the approved source for National Stock Number (NSN) 2510-01-580-2569, Cab Assembly, using Army Working Capital Funds.
- 3. Description of Supplies/Services:** The NSN 2510-01-580-2569, part number 3847782, Cab Assembly, is used on the Palletized Loading System (PLS) A1 and is a partial or full enclosure designed to protect the vehicle operator from adverse weather conditions and provides survivability protection. This cab includes items such as armor, doors, and windows. The deliverable for this contract is for a base quantity of 11 each, with an option quantity of 11 each, making a total quantity of 22 each. The total maximum value of this contract is \$ [REDACTED]

Acquisition Method Code (AMC):

3 - Acquire, for the second or subsequent time, directly from the actual manufacturer.

Acquisition Method Suffix Code (AMSC):

R - The data or the rights to use the data needed to purchase this part from additional sources are not owned by the Government and it has been determined that it is uneconomical to purchase them.

4. Authority Cited: The statutory authority permitting other than full and open competition for this effort is 10 United States Code (U.S.C.) 3204(a)(1) as implemented by the Federal Acquisition Regulation (FAR) 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

5. Reason for Authority Cited: The manufacturer of the cab assembly and the PLS A1 is Oshkosh Defense LLC. The PLS A1 was designed and tested by Oshkosh who own the intellectual property of the truck. Oshkosh developed the system level requirements and owns the details regarding the design intent of this assembly. The part is manufactured by Oshkosh based on Oshkosh's specifications and requirements. The performance characteristics, dimensions, materials, and mounting details are unknown. Oshkosh is the only vendor who possess the technical data and expertise to manufacture this cab assembly.

The Government does not have rights to the Technical Data Package (TDP) or

specifications.

The lack of technical data for this component results in little knowledge of the design details being known to the Government. PLS A1 cabs are very large and are fabricated knowing that many components will be mounted to and in it. This makes the design details like dimensions, tolerances, and welding patterns very important. Any change could adversely affect another important component. Using an alternative part would introduce technical risk to the performance and safety of the platform because the alternative would not have undergone rigorous developmental and operational testing on the production configuration of the platform. Oshkosh and the Government conducted developmental and operational testing during the vehicle's design and initial production phases. It's known that Oshkosh cab meets the Government's performance and reliability, availability, and maintainability (RAM) requirements. The TDP for this cab assembly is proprietary to Oshkosh and is unavailable to the Government or commercial manufacturers. If the part fails, the platform will be unable to complete its mission.

Since the Government does not own any of the technical data, the Government would have to reverse engineer the cab assembly to identify all aspects of the part. Reverse engineering is the only recourse for the Government to increase competition through development of a competitive build-to-print TDP. A reverse engineering effort would include procuring samples of the current part to utilize in defining a cab with the same fit, form, and function as the original by determining material types, dimensions, and internal workings of the part. Then, several prototypes of the new cab assembly would need to be designed and developed. Next, RAM testing would have to be completed. Testing would include accelerated life testing, cold and hot environments, and maximum load operation testing. To neglect testing would be high risk as premature failures of this item would jeopardize the Army's mission in a potentially adverse operational environment. After the qualification, the TDP would have to be built so the part could be competitively sourced, and a source would have to be found.

The Ground Vehicle Systems Center (GVSC) Heavy Tactical Vehicle Sustainment Team has estimated that the cost required to reverse engineer this cab assembly, based on conversations with Subject Matter Experts in Reverse Engineering, Test & Evaluation, and Quality Engineering for similar components, would be an estimated minimum of \$2,250,000 for:

- Procuring samples;
- Reverse Engineering (RE), including part qualification and design, development, and prototype;
- RAM testing, design validation and vehicle integration testing; and
- TDP development, to procure competitively.

A detailed breakdown of cost impacts is shown below.

Action	Cost	Delay
Sample Procurement	\$150,000	2 months
Part RE	\$750,000	7 months
RAM Vehicle Testing	\$850,000	6 months
Develop TDP	\$500,000	4 months
Total	\$2,250,000	18 months

The Government would not be able to recover, through subsequent competition, the duplication of costs involved in either procuring the proprietary data or reverse engineering the item to create a competitive build to print TDP within a reasonable time frame. At the current average usage rate of seven units each year, a current unit cost of \$[REDACTED] and assuming 25% savings achieved through competition, the \$[REDACTED] in annual savings would take over [REDACTED] years to offset the estimated \$2,250,000 cost of reverse engineering the item and qualifying another source.

6. Efforts to Obtain Competition:

- a. Effective competition: Due to the reasons cited in Section 5 above, the Government is not pursuing competition for this item. Notices required by FAR 5.201 will be posted.
- b. Subcontracting competition: Unless the contract is awarded to a small business, the solicitation and resulting contract will include FAR clauses 52.219-8, "Utilization of Small Business Concerns"; 52.244-5, "Competition in Subcontracting"; 52.219-16, "Liquidated Damages--Subcontracting Plan"; and Defense Federal Acquisition Regulation Supplement (DFARS) 252.219-7003, "Small Business Subcontracting Plan (DoD Contracts)," to maximize small business opportunities and utilization.

7. Actions to Increase Competition: There are no plans to increase competition for future procurements due to the reasons cited above.

8. Market Research: The GVSC Heavy Tactical Vehicle Sustainment Engineer performed the following internet searches on 27 March 2024, to find suitable competition for the Oshkosh cab assembly. Cab assemblies are manufactured to a specific vehicle and research has shown that there are not viable options for a drop-in replacement. Cabs are vehicle specific due to the complexity, allowable weight requirements, and different use cases of the vehicle. The materials, dimensions, mounting details, and performance requirements are not available for this assembly. Due to the lack of a TDP or in-depth technical specifications of the sole-source part, the validity of researched cabs is difficult to evaluate.

Keywords: PLS cab assembly, heavy truck cab assembly, army truck cab

Websites: <https://www.mclbody.com/military-trucks/>;
<https://www.thomasnet.com/suppliers/usa/truck-cabs-9920307>;
<https://www.truckcab.com/products.html>; <https://www.campbellcab.com/>;
<https://www.oakley-ind.com/>

Cab manufacturers like Mclaughlin, Campbell, Truck Cab, and Oakley were researched. These companies didn't display their products on the website but more just their capabilities and prior work in industry. It is apparent that due to the complexity of these cab assemblies that cabs are designed specifically to each vehicle, making no viable alternatives for replacement.

When, or if, the technical information for the cab is made available to the Government, additional and specific market research can be conducted, and competitive procurement can be considered.

A Sources Sought Notice was posted to SAM.gov on 15 April 2024 and was open for 15 days. One response was received from the sources sought notice from BHPE LLC on 24 April 2024 to express the firm's interest in the solicitation only – and not as a manufacturer of the assembly.

9. Interested Sources: To date no additional sources have expressed interest as listed above in Section 8.

10. Other Facts: Procurement History:

Contract Number: SPRDL1-20-C-0208
Award Date: 10 September 2020
Contractor: Oshkosh Defense, LLC (CAGE 75Q65)
Contract Value: \$1,246,592
Competitive Status: FAR 6.302-1 only one responsible source

11. Technical Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Division Chief – Sustainment
Email: [REDACTED]
Signature:

10/3/2024

X

Division Chief - Sustainment

Signed by: USA

12. Requirement Certification: I certify that the supporting data under my cognizance which is included in the justification is accurate and complete to the best of my knowledge and belief.

Name: [REDACTED]
Title: Division Chief – Sourcing
Signature:

10/3/2024

X

Sourcing Division Chief

Signed by: [REDACTED]

13. Fair and Reasonable Cost Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination will be based on the results of a detailed cost and/or price analysis. As this item has been determined to be other than a commercial item, certified cost and pricing data may be required.

Name: Bourdeau, Leah C.
Title: Contracting Officer
Signature:

10/3/2024

X

Leah Bourdeau

Leah Bourdeau

Contracting Officer

Signed by: BOURDEAU.LEAH.CLARE. [REDACTED]

14. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

Name: Bourdeau, Leah C.
Title: Contracting Officer
Signature:

10/3/2024

X Leah Bourdeau

Leah Bourdeau

Contracting Officer

Signed by: BOURDEAU.LEAH.CLARE

Approval Authority for Acquisitions Greater Than \$750,000 But Less Than \$15M

**APPROVAL OF JUSTIFICATION
FOR OTHER THAN FULL AND OPEN COMPETITION**

Based on the foregoing Justification, I hereby approve the procurement of the following:

- a. Noun: Cab Assembly
- b. NSN: 2510-01-580-2569
- c. Total Quantity: 11 each with 100% option
- d. Total Estimated Value: \$ [REDACTED]

This action will be awarded under other than full and open competition pursuant to the authority of 10 U.S.C. 3204(a)(1) and subject to the availability of funds. This approval is subject to the provision that the property herein described has otherwise been authorized for acquisition.

Signature:

WIEBUSCH.JA
~~ME.125189732~~

Digitally signed by
WIEBUSCH.JAMIE. [REDACTED]

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Date: 2024.10.16 15:37:10
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Competition Advocate